

Multiple Choice (10 marks)

1. What is the meaning of justiciability?
 - (a) Justiciability refers to the limitation of a State to enforce a particular right
 - (b) Justiciability refers to the ethical implications of a particular right
 - (c) Justiciability refers to the just nature or cause of a particular right
 - (d) Justiciability refers to the availability of legal remedies for a particular right
 - (e) Justiciability refers to the obligation of a State to enforce a particular Right
2. Tom and Jerry entered into a contract whereby Tom agreed to sell Jerry \$1,000 worth of heroin, an illegal substance. This is an example of a:
 - (a) quasi contract
 - (b) unilateral contract
 - (c) secondary party beneficiary contract
 - (d) express contract
 - (e) bilateral contract
3. Which of the following quotations best describes the central thesis of difference feminism?
 - (a) 'Difference feminism argues that men and women are fundamentally the same.'
 - (b) Men are unable to comprehend their differences from women.'
 - (c) 'Men and women differ only in physical attributes, not in their thought processes.'
 - (d) 'Men are more inclined towards justice, while women tend to focus on fairness.'
 - (e) There are fundamental differences between individual women.'
4. Lyotard's dictum 'I define postmodern as incredulity toward meta-narratives' means:
 - (a) Postmodernism disregards individual stories.
 - (b) Universal values are meaningless.
 - (c) Literature reproduces repression.
 - (d) The concept of truth is objective and undeniable.
 - (e) The law is static.
5. Which of the following purposes does the 'internal point of view' play in Hart's concept of law?
 - (a) It distinguishes social rules from mere group habits.

- (b) It defines the judicial function.
- (c) It illustrates the authority of the legislature.
- (d) It stresses the relationship between law and justice.

True / False (10 marks)

Answer True or False

- 6. True or False: Kelsen's theory defines law primarily in accordance with principles of morality and justice.
- 7. True or False: The use of armed force prior to the United Nations Charter was primarily permitted only in cases of self-defense.
- 8. True or False: A warranty of merchantability ensures that goods are fit for ordinary use, regardless of the buyer's specific goals.
- 9. True or False: An indigent person does not have the Sixth Amendment right to counsel during investigative surveillance.
- 10. True or False: The testimony of a man on death row is hearsay and admissible as a prior statement by a witness under the rules of evidence.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

- 11. Discuss the factors that contribute to a defendant's criminal responsibility for a victim's death, using a case where the defendant's violent act directly leads to the victim's fatal accident.
- 12. Discuss the concept of solicitation in criminal law, specifically addressing its defining characteristics and explaining why an agreement between two or more to commit a crime is not applicable to solicitation.

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